

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

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KASSIEM MARTIN,

Date Index Number
Purchased: June 18,
2024

Plaintiff,

SUMMONS

-against-

Plaintiff designates
New York County
as the place of trial

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK CITY POLICE OFFICERS
CHARLIE RUIZ-REYES (BADGE#25922) AND POLICE
OFFICER TULOVIC (BADGE#17596), AND JOHN DOES/
JANE DOES 1-5,

The basis of venue is
location where the
cause of action arose

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
June 18, 2024

Yours, etc.,

Brian K. Robinson

Brian K. Robinson, Esq.
B.K. Robinson Law, P.C.
747 Third Avenue, 32nd Floor
New York, NY 10017

TO:
THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

NEW YORK CITY POLICE OFFICERS CHARLIE RUIZ REYES (BADGE#25922) and P.O
TULOVIC (BADGE#17596)
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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KASSIEM MARTIN,

Index No.:

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK CITY POLICE OFFICERS
CHARLIE RUIZ-REYES (BADGE#25922) AND POLICE
OFFICER TULOVIC (BADGE#17596), AND JOHN
DOES/JANE DOES 1-5,

COMPLAINT

Defendants.

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Plaintiff, complaining of Defendants, by Plaintiff's attorneys, B.K. Robinson Law, P.C.

respectfully shows to this Court, and alleges upon information and belief, the following:

1. That at all times hereinafter mentioned, Plaintiff, Kassiem Martin (hereinafter "Plaintiff"), is a resident of the City of New York, County of New York, and the State of New York.
2. That at all times hereinafter mentioned, New York City Police Officer Charlie Ruiz-Reyes (Badge#25922) and New York City Police Officer Tulovic (Badge#17596), and John Does/Jane Does 1-5, collectively, the officers involved in the arrest of Plaintiff, were employed by the New York City Police Department, assigned to the 32nd Precinct.
3. That at all times hereinafter mentioned, Police Officers Ruiz-Reyes and Tulovic, and John Does/Jane Does 1-5, were police officers, acting within their scope of employment and under the color of duty of The City of New York and the New York City Police Department.

4. That at all times hereinafter mentioned, Defendant The City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 100 Church Street, County of New York, City and State of New York.
5. That at all times hereinafter mentioned, Defendant New York City Police Department, was and is an agency created and maintained by the above municipal government.
6. On or about June 20, 2023, the notice required by Municipal Law 50-E was given to The City of New York, by filing the same with Office of the Corporation Counsel at 100 Church Street, N.Y., N.Y. Said notice set forth the facts underlying Plaintiff's claim against The City of New York, and its agents and employees.
7. To date, no answer has been received by Plaintiff and no compensation has been offered by The City of New York.
8. On or about September 28, 2023, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth facts underlying Plaintiff's claim against The City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by The City of New York in response to this claim, and more than thirty (30) days have elapsed.
9. That on or about January 28, 2023, in the vicinity of the northeast corner of Bradhurst Avenue and West 152nd Street in City, County and State of New York, Plaintiff was lawfully on his way to a bodega located at the corner of West 154th Street and Bradhurst Avenue.

10. That on or about January 28, 2023, in the vicinity of West 152nd Street and Bradhurst Avenue, Defendants approached Plaintiff as he alone was lawfully driving south from West 154th Street and Bradhurst Avenue in a vehicle owned and operated by the son of a neighborhood friend, when he was pulled over by employees of the New York Police Department driving an unmarked vehicle and removed from the vehicle, handcuffed in a manner that injured his wrists and was placed under arrest by no less than five (5) New York City Police Officers. Plaintiff was moving the vehicle at the request of New York City Police Officers in a marked vehicle because the car had been parked in front of a fire hydrant on Bradhurst Avenue near West 154th Street.
11. That at no time was Plaintiff engaged in any criminal or unlawful activity.
12. That at no time was Plaintiff engaged in any of the criminal or unlawful activity as alleged under New York Criminal Court Docket Number CR-002962-23NY.
13. Thereafter Plaintiff was transported to the 32nd Precinct.
14. That while Plaintiff was at this Precinct, the Plaintiff was searched and nothing of an illegal nature was recovered from him personally.
15. However, an illegal substance and a loaded firearm were found in the vehicle, which was not owned, operated or registered to Plaintiff.
16. Despite giving his name and the correct spelling of his name several times during the course of the arrest, Plaintiff's name was not recorded properly, and he was wrongfully charged with False Personation. Unfortunately, Plaintiff's wallet had been left in the car he had been driving on his way to the bodega, which he had parked on 154th Street

between 8th Avenue and Bradhurst Avenue before walking to the bodega on the corner of West 154th Street and Bradhurst Avenue.

17. That while being processed at the 32nd Precinct, Plaintiff overheard a Captain, whose rank he identified by his uniform, tell the arresting officers that they should have waited, and that they had arrested the wrong person. Nevertheless, Plaintiff was not released at that time.
18. That while being held at the 32nd Precinct, and after being searched, and after requesting to use the bathroom, Plaintiff was violated by Police Officer Reyes Ruiz, who forced Plaintiff to move his bowels while he stood at the bathroom stall door and watched him, and then told Plaintiff not to wipe himself when he was done.
19. That after being held in a cell inside of this Precinct for approximately ten hours, Plaintiff was transported to Central Booking.
20. That after being held at Central Booking for approximately sixteen (16) hours, Plaintiff appeared for arraignment at approximately 1:00 a.m., and was then transported to Rikers Island, where he remained for another few hours until his bail was posted, and then released from custody.
21. That Plaintiff was forced to attend Court in relation to the charges for which he was arrested for on at least two separate occasions.
22. That on or about March 20, 2023, the New York County Criminal Court dismissed all charges for which Plaintiff was arrested for on January 28, 2023.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF KASSIEM MARTIN**

23. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 – 22 as if more fully stated herein at length
24. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
25. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.
26. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for the Plaintiff's own physical safety when the Plaintiff sees and encounters members of the New York City Police Department from the day of the arrest and onward.
27. That as a result of Defendants' actions, Plaintiff has been unable to sleep.
28. That as a result of Defendants actions, Plaintiff lost his employment and has been unable to maintain employment.
29. That as a result of the Defendants' actions, Plaintiff sustained damage to Plaintiff's person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF, KASSIEM MARTIN**

30. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 – 29 as if more fully stated herein at length.

31. The intentional verbal abuse, false arrest, and false imprisonment by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution , for which Defendants are individually liable.
32. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless unlawfully arrest Plaintiff with actual malice toward the Plaintiff and with willful and wanton indifference to and deliberate disregard for the Plaintiff's constitutional rights. Thus, Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF KASSIEM MARTIN**

33. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1-32 as if more fully stated herein at length.
34. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec 1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus, Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF KASSIEM MARTIN**

35. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1-34 as if more fully stated herein at length.
36. That at all times pertinent hereto, arresting NYPD Police Officers Charlie Ruiz Reyes and Tulovic, and all other officers involved in Plaintiff's arrest were acting within the

scope of their employment as officers of the New York City Police Department and the City of New York.

37. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical injury and emotional distress for which the Defendants are individually liable.

38. The verbal abuse, false arrest, and false imprisonment of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and with deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

39. That Defendants did persist in their claims in an effort to continue the imprisonment of the Plaintiff.

40. That the respective Defendants, their agents, servants and/or employees engaged in presenting and/or providing false information and/or testimony for the purpose of prosecuting this action.

41. That Defendants The City of New York and the New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the internal torts that the NYPD Police Officers committed within the scope of their employment.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF KASSIEM MARTIN**

42. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1-41 as if more fully states herein at length.

43. The City of New York and the New York City Police Department's failure to provide adequate training and supervision to NYPD Police Officers Charlie Ruiz Reyes and Tulovic, and all of the arresting officers, constitute a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF KASSIEM MARTIN**

44. Plaintiff repeats, reiterates, and realleges the allegations contained in paragraphs 1-43 as if more fully states herein at length.

45. The Defendant, The City of New York, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, the Defendant, The City of New York, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant, The City of New York, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

46. The Defendant, New York City Police Department, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, the Defendant, New York City Police Department, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant, New York City Police Department, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.
47. That by reason of the foregoing, Plaintiff, Kassiem Martin, was injured and damaged, rendered sore, suffered great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, Plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and Plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.
48. That by reason of the aforesaid unlawful arrest, the Plaintiff, was deprived of Plaintiff's liberty, was subjected to great indignity, humiliation, pain and great distress of mind

and body and was held up to scorn and ridicule, was injured in Plaintiff's character and reputation, was prevented from attending Plaintiff's usual business and avocation, was injured in Plaintiff's reputation in the community and the said Plaintiff has been otherwise damaged.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF KASSIEM MARTIN**

49. Plaintiff repeats, reiterates, and realleges the allegations contained in paragraphs 1-48 as if more fully states herein at length.
50. Upon information and belief, the City of New York and the New York City Police Department maintained a system of review for police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.
51. Upon information and belief, The City of New York and the New York City Police Department maintained a system of review for police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.
52. That by reason of the foregoing, Plaintiff has suffered damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

WHEREFORE, Plaintiff, demands judgment against the respective Defendants in the First Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, demands judgment against the respective Defendants in the Second Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff demands judgment against the respective Defendants in the Third Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff demands judgment against the respective Defendants in the Fourth Cause of Action in an amount which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, demands judgment against the respective Defendants in the Fifth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, demands judgment against the respective Defendants in the Sixth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action, together with costs, disbursements and punitive damages in an amount to be determined at the time of the trial in the within action including any statutory attorney's fees and disbursements pursuant to 42 U.S.C. § 1983 and for such other and further relief as to this Court may deem just and proper.

Dated: New York, NY
June 18, 2024

Yours, etc.,

Brian K. Robinson

Brian K. Robinson, Esq.
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